

		\$44,775.00 to Law Offices of Farrah Mirabel] for plaintiff's attorneys' fees; • \$12,699.40 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Dinh C. Truong as enhancement award, as requested; • \$5,350.00 to ILYM Group, Inc., the settlement administrator, as requested; • \$87,187.95 to the LWDA for its share of PAGA penalties; and • \$29,062.65 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for July 19, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
8	30-2023-01354699 Moayeri vs. Financial Insight Technology, Inc.	The tentative ruling is to continue Plaintiff Amir Moayeri's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff failed to provide the court with a text-searchable declaration from counsel, Megan Lazar, in compliance with CRC 2.256(b)(3).

	Plaintiff does not provide an estimate of the number of class members and aggrieved employees included in this settlement. The motion fails to provide the class members' and aggrieved employees' estimated individual recovery under the proposed settlement, including the estimated high, low and average payments to be paid to class members and aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The settlement agreement and class notice are inconsistent as to who will resolve workweek disputes. Paragraph 59 of the settlement agreement and page 6 of the class notice state that the Administrator will resolve any workweek disputes, but page 2 of the class notice states that the decision is reviewable by the court. The documents should reflect instead that while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. The Class and PAGA Periods are defined as ending on June 4, 2025. However, the escalator clause in Paragraph 54 of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees, or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date so that it is not sent to non-participants.
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		The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. The settlement agreement does not state whether it is reversionary or non-reversionary. The court will not issue an injunction against the aggrieved employees or the State of California. Res judicata and collateral estoppel arguments should provide defendants with sufficient protection against facing these same claims again. Thus the phrase "The Aggrieved Employees and the State of California will be deemed by operation of the Final Order and Judgment to have agreed not to sue or otherwise make a claim against Defendants and/or any of the Released Parties for the PAGA Claims that arose during the PAGA Period, to the extent permissible by law." must be removed from Paragraph 49 of the settlement agreement and Page 5 of the class notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff shall provide notice of this ruling to the LWDA, and to Defendants.
9	30-2023-01360696 Cuevas vs. Brothers International Desserts, Inc.	The tentative ruling is to continue Plaintiffs Mario De Jesus Cuevas and Grecia Veliz Castillo's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m.